

25AVCV01014 25AVCV01014

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV01014 Hearing Date: July 30, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JOSE OSWALDO VALDEZ,

Plaintiff,

v.

SPINOSO REAL ESTATE GROUP DLS, LLC; SPINOSO MANAGEMENT GROUP, LLC; BRIDGE GROUP INVESTMENTS II LLC; BRIDGE GROUP INVESTMENTS, LLC; ANTELOPE VALLEY MALL, LLC; and DOES 1 through 100,

Defendants.

Case Number 25AVCV01014

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 30, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence and premises liability case arising from Plaintiff Jose Oswaldo Valdez's (Plaintiff) fall from a roof during the scope of his employment. Third party Security National Insurance Company (Security) moves the Court to intervene.

On August 13, 2025, Plaintiff filed a complaint against Spinoso Real Estate Group DLS, LLC (Spinoso), Spinoso Management Group, LLC (Spinoso Management), Bridge Group Investments II, LLC (Bridge II), Bridge Group Investments, LLC (Bridge), and Antelope Valley Shop, LLC (erroneously sued as Antelope Valley Mall, LLC) (AVS) (collectively Defendants), asserting three causes of action for (1) general negligence, (2) premises liability, and (3) negligent undertaking.

Specifically, Plaintiff alleges that he was injured on May 17, 2024 at 1233 Rancho Vista Boulevard, Palmdale, CA 93551, known as the Antelope Valley Mall (the Property), when he fell due to failures, disrepair, and damage in a roof access door on the Property, which gave way and broke. (Compl., ¶ 11.) Plaintiff was purportedly employed and working in the course and scope of his employment with Brock Heating & Air Inc. (Brock) and working on a flat roof at the Mall at the time of the subject incident, and while coming down the ladder from the roof, he attempted to close the roof access door when the handle broke off, causing him to fall and sustain injuries. (Motion, p. 3:7-12.)

On December 4, 2025, Spinoso and Spinoso Management filed a joint answer.

On December 10, 2025, Spinoso and Spinoso Management filed a cross-complaint against ROEs 1 through 50, asserting causes of action for equitable and express indemnity.

On February 25, 2026, default was entered against Defendants Bridge, Bridge II, and AVS.

On February 27, 2026, Defendants Bridge, Bridge II, and AVS filed a cross-complaint against Happy Hours Bar & Grill, Inc. (Happy Hours), EPI Concepts Construction, Inc. (EPI), Brock, and ROEs 1 through 100, asserting causes of action for (1) total indemnity, (2) equitable indemnity, (3) express indemnity, (4) breach of contract, (5) breach of contract – defense), (6) declaratory relief, (7) breach of implied warranty, (8) negligence, and (9) contribution.

On March 16, 2026, Plaintiff filed two amendments to the complaint, substituting Happy Hours as Doe 1 and EPI as Doe 2.

That same date, Bridge, Bridge II, and AVS filed a stipulation with Plaintiff to set aside the default of all three Defendants, which was granted.

On April 1, 2026, Spinoso and Spinoso Management filed an amendment to the cross-complaint, naming AVS as Roe 1.

On May 19, 2026, Security filed the present motion for leave to intervene and file a first amended complaint in intervention.

This motion is unopposed.

II. Legal Standard

Standard for Intervention – An intervention takes place when a nonparty intervenor, seeks to become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, joining a defendant in

resisting the plaintiff's claims, or demanding anything adverse to both a plaintiff and a defendant. (Code Civ. Proc., § 387, subd. (b).)

"A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc., § 387(c).)

If the nonparty timely files its application, then the court shall permit the nonparty to intervene in the action as long as either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(Code Civ. Proc., § 387, subd. (d)(1).)

Otherwise, the court may permit the nonparty to intervene in the action, as long as the motion is timely, if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc., § 387(d)(2).) This section is construed liberally "in favor of intervention." (Simpson Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1200.) "For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties[,] and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit." (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

There is no statutory time limit for filing a motion to intervene. (Noya v. A.W. Coulter Trucking (2006) 143 Cal.App.4th 838, 842.) "[T]he timeliness of a motion to intervene under section 387 should be determined based on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented." (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) Intervention is possible at any time, even after judgment, if otherwise appropriate. (Mallick v. Superior Court (1979) 89 Cal.App.3d 434, 437.)

If intervention is granted, the intervenor must (1) separately file (a) a complaint-in-intervention, (b) answer-in-intervention, or (c) both and (2) serve all parties. (Code Civ. Proc., § 387, subd. (e).)

III. Discussion

Application – Security moves to intervene pursuant to California Code of Civil Procedure section 387, subdivision (b), on the grounds that California Labor Code section 3850, et seq. confer on Security the unconditional right to intervene, and because Security claims an interest in any recovery made by Plaintiff. (Motion, p. 2:1-4.)

Security asserts that at the time of the incident, Brock's employees, including Plaintiff, were covered under a worker's compensation insurance policy that was contracted through and delivered by Security and governed by California law. (Motion, p. 3:14-18; Kirsch Decl., ¶ 3.) As a result of Plaintiff's sustaining personal injuries, Security became obligated to pay workers' compensation insurance benefits to, and on behalf of, Plaintiff. (Motion, p. 3:18-22; Kirsch Decl., ¶ 4.) Security asserts that as of May 12, 2026, it has paid a total of \$129,998.17 in workers' compensation to and on behalf of Plaintiff as

the result of his injuries, and the claim remains open with the lien expected to increase to the extent that it pays additional benefits to or on behalf of Plaintiff. (Motion, p. 3:22-27; Kirsch Decl., ¶ 5.)

Pursuant to California Labor Code section 3852, subdivision (a), an employer who pays or becomes obligated to pay compensation, salary in lieu of compensation, or an amount to the Department of Industrial Relations may make a claim or bring an action against the third person or recover in the same suit for compensation and damages for which they were liable, including all salary, wage, pension, or other emolument paid to the employee or to their dependents.

California Labor Code section 3856, subdivision (c) states that if the action is prosecuted both by the employee and the employer, the court shall first order paid from any judgment for damages recovered the reasonable litigation expenses incurred in preparation and prosecution of such action or actions, together with reasonable attorneys' fees based solely on the services rendered for the benefit of both parties based solely upon the service rendered in each instance by the attorney in effecting recovery for the benefit of the party represented. "After the payment of such expenses and attorneys' fees the court shall apply out of the amount of such judgment for damages an amount sufficient to reimburse the employer for the amount of his expenditures for compensation together with any other amounts to which he may be entitled as special damages under Section 3852." (Lab. Code, § 3856, subd. (c).)

An employer and compensation insurance carrier has an absolute right to intervene in an action involving an injured employee. (See *Brandon v. Santa Rita Technology, Inc.* (1972) 25 Cal.App.3d 838, 843-44; *Benwell v. Dean* (1967) 249 Cal.App.2d 345, 361; *Tate v. Superior Court* (1963) 213 Cal.App.2d 238, 247.)

Here, the Court finds that Security has an absolute right to intervene and has satisfied the procedural requirements to do so.

Accordingly, Security's motion for leave to intervene is GRANTED.

IV. Conclusion

Third Party Security National Insurance Company's Motion for Leave to Intervene is GRANTED. Security National shall file the complaint in intervention within 10 days of this Order.